

25STCV09281 25STCV09281

County: los-angeles
Division: Civil Law and Motion
Department: 506
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Case Number: 25STCV09281 Hearing Date: July 23, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

EVERETT
MALDONADO,

Plaintiff,

vs.

BMW OF NORTH AMERICA, LLC, ET AL..

Defendant.

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CASE NO.: 25STCV09281

[TENTATIVE] ORDER

DENYING DEFENDANTS' MOTION TO COMPEL
DEPOSITION

Dept. 506

8:30 a.m.

JULY 23, 2026

On

March 28, 2025, Plaintiff filed this Song Beverly Action against Defendants. Plaintiff filed the operative First Amended Complaint on December 9, 2025 alleging (1) violation of subdivision (d) of Civil Code section 1793.2; (2) violation of subdivision (b) of Civil Code section 1793.2; (3) violation of subdivision (a)(3) of Civil Code section 1793.2; and (4) breach of implied warranty of merchantability (Civil Code §§1791.1, 1794 and 1795.5).

On

July 10, 2026, Defendants BMW North America, LLC and Irvine BMW Mini ("Defendants") filed the instant motion to compel deposition of Plaintiff. On July 10, 2026, Plaintiff filed an opposition to the motion to compel. No reply has been filed as of July 20, 2026.

I. Legal Standard

"If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code of Civ. Proc., §2025.450, subd. (a).)

"A motion under subdivision (a) shall comply with both of the following: (1) The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice. (2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code of Civ. Proc., §2025.450, subd. (b).)

II. Defendants Failed to Meet and Confer or
Contact Plaintiff regarding Non-Attendance at Deposition as Required under Code
of Civil Procedure section 2025.450, subdivision (b).

Defendant

served a deposition notice on Plaintiff for deposition on May 22, 2026. (Lamb Dec., ¶14.) Defendant noticed the deposition unilaterally due to Plaintiff's failure to provide dates by April 17, 2026, as defense counsel requested. (Id.) Defendant emailed Plaintiff on May 13, 15 and 19, 2026 to confirm Plaintiff's appearance at deposition on May 22, 2026. (Id.) Plaintiff served objections to the deposition notice on May 20, 2026. (Id. at ¶17.) Defendant submits "Plaintiff has yet to provide dates to conform to the discovery timeline in this case." (Id. at ¶17.)

Plaintiff

served objections on May 20, 2026, only 2 days before the scheduled deposition date. The objections were therefore

untimely under Code of Civil Procedure section 2025.410. Plaintiff did not serve valid objection pursuant to section 2025.450 subdivision (a) and Defendants were entitled to move to compel deposition.

However,

Defense counsel's declaration fails to attest to any good faith attempts to meet and confer about available deposition dates after receiving Plaintiff's objection and notice that he would not be attending. Defendant only states that the Plaintiff did not provide any alternative dates after serving objections on May 20, 2026. Defendant does not attest to any attempts to contact Plaintiff after receiving these objections on May 20, 2026. (Lamb Dec., ¶7.)

Plaintiff's

counsel also confirms that, on May 21, 2026, he contacted Defense counsel and reiterated that he would not be attending the deposition. (Wong Dec., ¶6.) Plaintiff's counsel confirms that Defendants have failed to meet and confer after Plaintiff informed them on May 20 and 21 that he would not be attending the deposition.

(Id. at ¶¶6, 7.) Plaintiff

also indicates parties have been meeting and conferring after this motion was filed and he has since offered multiple dates in August, September, October, November and December 2026 for deposition.

(Id. at ¶8.) To date,

Defense counsel has not responded or accepted any of these offered dates. (Id. at ¶9.)

Defendant

fails to submit a sufficient meet and confer declaration pursuant to Code of Civil Procedure sections 2016.040 and 2025.450, subdivision (a). Defendant's motion to compel deposition is denied for failure to meet and confer.

Accordingly, the motion to compel attendance at deposition is denied.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on

calendar.

Dated this 23rd day of July 2026

Hon. Thomas D.

Long

Judge of the Superior

Court